

SEE ALSO Newsletter of September 26, 2023

[doc. web n. 9932951]

Provision of August 31, 2023

Register of provisions

n. 366 of August 31, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by
Prof. Pasquale Stanzone, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Fabio Mattei, secretary general;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree No. 196 of June 30, 2003, as amended by Legislative Decree No. 101 of August 10, 2018, hereinafter "Code");

HAVING REGARD TO the complaint submitted to the Guarantor on February 17, 2023, pursuant to Article 77 of the Regulation, by Ms. XX, represented and defended by Attorney XX, who complained of a violation of the current regulations on the protection of personal data in relation to the dissemination, on January 23, 2023, on the website of Corriere della Sera, of an article titled: "XX," containing a photographic reproduction of the holographic will of actress XX, who passed away on January 16, 2023, drafted on January 5, 2017. The holographic will contains the name, date, place of birth, residential address, and the status of witness assumed, for the purposes of the testamentary procedure, by the complainant, who was at the time employed in the solvent department of the healthcare facility XX, where Ms. XX was hospitalized. Following the dissemination of the article, the complainant also reported being contacted by acquaintances and journalists seeking information;

CONSIDERING that the complainant stated that she had previously exercised the rights under Articles 15 and 22 of the Regulation against RCS Mediagroup S.p.a., the data controller, without receiving any response;

HAVING REGARD TO the note of March 2, 2023, in which this Authority requested RCS Mediagroup S.p.a., as the publisher of Il Corriere della Sera, to respond to the complainant's requests and to inform whether there was an intention to comply with them;

HAVING REGARD TO the note of March 21, 2023, in which RCS Mediagroup S.p.a. stated the following:

- the will is a public act, accessible to anyone with an interest, and therefore Il Corriere della Sera published the article, also reproducing an image of the first page of the will, drafted on January 5, 2017, in Rome, in the presence of two witnesses known to the notary, one of whom was Ms. XX;
- the personal details of the witnesses are an integral part of that public act, as their presence is necessary for the entire duration of the compilation of the will;
- the public nature of the will deprives it of any aspect of confidentiality, as it is in the interest of those who become aware of it to also know the identity of the witnesses, whose presence is essential for its very validity;
- the photographic reproduction of the page of the will and the publication of personal data therefore occurred lawfully;

HAVING REGARD TO the note from the complainant, received on March 30, 2023, in which, in response to the observations made by RCS Mediagroup S.p.a., she highlighted that:

- there are no circumstances in the specific case that fall under the hypotheses indicated in Article 6 of the "Ethical Rules regarding the processing of personal data in the exercise of journalistic activity"

(hereinafter "Ethical Rules") referred to in Article 139 of the Code, according to which the disclosure of news of significant public or social interest does not conflict with the respect for the private sphere "when the information, even detailed, is indispensable due to the originality of the fact or the relative description of the particular ways in which it occurred, as well as the qualification of the protagonists"; - therefore, the journalist, to be exempt from censure and liability and to not infringe upon the complainant's right to privacy, should have refrained from disseminating names and data of individuals connected to the protagonists solely due to mere factual circumstances, as in the present case.

HAVING REGARD TO the note from this Authority dated June 1, 2023, which, pursuant to Article 166, paragraph 5, of the Code, communicated to the data controller the initiation of proceedings for the possible adoption of measures under Article 58, paragraph 2, of the Regulation, and also notified the same data controller of the alleged violations of Article 5 of the Regulation and Articles 2-quater, paragraph 4, 137, and 139 of the Code and Article 6 of the Ethical Rules, and finally, in relation to the profile concerning the exercise of rights, an alleged violation of Articles 15-22 of the Regulation;

HAVING REGARD TO the note dated June 22, 2023, in which RCS Mediagroup S.p.a. stated that:

- preliminarily, regarding the dispute concerning the lack of response, the Company assessed the request noting that it was in fact aimed at obtaining compensation for a damage that was not demonstrated and concluded that it was not admissible, without the need to inform the interested party; furthermore, the request made was somewhat understandable, where it was requested to make the data of the interested party no longer visible in the streaming transmission, while RCS had limited itself to publishing on the website of Il Corriere della Sera a news article and a photo of the front page of Mrs. XX's will;
- as for the merits, the will was reproduced in its entirety, as the presence and identity of the witnesses are essential for its validity, forming an integral part of it. In fact, to ensure impartiality, the witness must not have an interest in the act and must not be related or connected to the notary or any of the parties, so that the indication of their personal details is essential to allow the parties or third parties to verify their compatibility with the office;
- therefore, the processing of the personal data of the interested party was essential in order to provide readers with all the essential data of the reproduced document;
- personal data may be processed if related to "news of significant public interest," such as the actress's will, and detailed information and photographic reproduction of the first page of the will must also be considered indispensable;
- all personal references related to the complainant and the other witness were deleted from the reproduction of the page of the will. In fact, after the notification of the initiation of the procedure, the Company immediately took action to remove from the website www.corriere.it the images subject to the reported processing, which have been removed. No further reference to the name and role of the complainant has been published;

CONSIDERING that, unless the act constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor";

NOTED preliminarily that the failure to respond to the inquiry can be considered excusable, as the request made was not actually clear, referring to compensation for damages and to a streaming reproduction that RCS Mediagroup S.p.a. has never carried out;

THEREFORE CONSIDERED that there are no grounds for accepting the related request;

CONSIDERING that:

- the article in question must be traced back to the treatments carried out in the exercise of freedom of expression and that therefore Articles 136 - 139 of the Code and the Deontological Rules referred to in Article 139 of the same Code apply in their entirety;
- Article 137, paragraph 3, of the Code and Article 6 of the Deontological Rules identify as a limit to the dissemination of personal data for the described purposes the principle of "essentiality of information regarding facts of public interest," which the journalist is required to respect;

NOTED that compliance with the aforementioned Deontological Rules constitutes an essential

condition for the lawfulness and correctness of the processing of personal data (Article 2-quater of the Code);

NOTED that:

- the article in question is in contrast with such provisions, and in particular with the principle of essentiality of information, as it publishes all identifying data of the complainant (name, surname, date of birth, residential address), all of which were subsequently deleted by the data controller following the initiation of the procedure; in this way, data exceeding what is necessary for correct information has been disseminated, exposing the interested party to attention that goes well beyond the circle of her acquaintances, without the dissemination of her data being essential to the news;

- the argument that the will is a public act accessible to anyone with an interest cannot be shared, as the consultation of the register of wills at the Ministry of Justice is regulated by sector legislation; the reproduction of such data, although public and lawfully acquired, in online newspapers ends up making available on the Internet to an indeterminate multitude of people data relating to individual individuals. Such reproduction, especially when it does not concern public figures, is therefore subject to the usual parameters of essentiality concerning the narrated public interest fact, correctness, relevance, and non-excessiveness (cf. provision no. 22 of November 24, 2023 and the document "Privacy and Journalism. Some clarifications in response to questions from the Order of Journalists - May 6, 2004" [web doc no. 1007634];

- in essence, the fact that the complainant's data are essential for the validity of the holographic will does not mean that they are also essential for the right to report, which could have been pursued equally, without necessarily providing all the personal data of the complainant;

THEREFORE NOTED the unlawfulness of the article subject to complaint, as it is in contrast with the aforementioned provisions - in particular, with Articles 137, paragraph 3, and 139 of the Code and Article 6 of the Deontological Rules - and therefore with the general principles of lawfulness and correctness of the processing of personal data referred to in Article 5, paragraph 1, letter a), of the Regulation;

CONSIDERED pursuant to Article 57, paragraph 1, letter f), of the Regulation that the complaint should be deemed founded and consequently, pursuant to Article 58, paragraph 2, of the Regulation, it is necessary to:

- impose on RCS Mediagroup S.p.a., pursuant to art. 58, par. 2, lett. c) and g) of the Regulation, the prohibition of processing the personal details of the complainant, the date of birth, and the residential address, within the article in question;
- adopt an injunction order, pursuant to arts. 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against RCS Mediagroup S.p.a. of the administrative pecuniary sanction provided for by the combined provisions of arts. 2-quater, 166, paragraph 2, of the Code, and 83, paragraphs 3 and 5, of the Regulation;

NOTING that for the determination of the amount of the pecuniary sanction, it is necessary to take into account the elements indicated in art. 83, par. 2, of the Regulation and that in the specific case it is necessary to consider, on the one hand, the aggravating circumstances:

- a) the nature of the violation (art. 83, par. 2, lett. a), of the Regulation), consisting of the dissemination on a national interest website of the personal details, date of birth, and residential address of the complainant;
- b) the intervention of the data controller aimed at removing the complainant's data only following the initiation of the procedure for contesting the identified violations (art. 83, par. 2, lett. c, of the Regulation);
- c) the existence of previous violations concerning the provisions related to journalistic activity, committed by the data controller since the entry into force of the Regulation (art. 83, par. 2 lett. c);
- d) the conditions of significance on the organizational, economic, and professional level of the offender (art. 83, par. 2, lett. k, of the Regulation) taking into account what emerged in the financial statements for the year 2021;

and, as mitigating circumstances:

- e) the purposes pursued by the data controller, generally attributable to the freedom of information

regulated by art. 85 of the Regulation and by arts. 136 et seq. of the Code;

f) the involvement of only the complainant in the contested matter (art. 83, par. 2, lett. a, of the Regulation);

CONSIDERING the parameters above and the principles of effectiveness, proportionality, and deterrence indicated in art. 83, par. 1, of the Regulation;

CONSIDERED that, based on the overall elements indicated above, the administrative pecuniary sanction should be applied in the amount of euro 10,000.00 (ten thousand euros);

CONSIDERED that the prerequisites exist to proceed with the annotation in the internal register of the Authority pursuant to art. 57, par. 1, lett. u), of the Regulation, regarding the measures adopted in the specific case in accordance with art. 58, par. 2, of the same Regulation;

HAVING SEEN the documentation on file;

HAVING SEEN the observations made by the Secretary General pursuant to art. 15 of the Garante Regulation No. 1/2000;

REPORTING by Prof. Pasquale Stanzione;

ALL OF THE ABOVE CONSIDERED, THE Garante

a) declares the complaint unfounded with reference to the lack of response following the exercise of rights;

b) pursuant to arts. 57 par. 1, lett. f) of the Regulation, declares the complaint founded for the reasons stated in the preamble and, in particular, pursuant to art. 58, par. 2, lett. f), orders RCS Mediagroup S.p.a. to cease further processing of the complainant's name and surname, date of birth, and residential address, as described above, as it is in violation of arts. 2-quater, paragraph 4, 137, paragraph 3, and 139 of the Code and art. 6 of the Deontological Rules, and with the general principles of art. 5, par. 1 lett. a) and c) of the Regulation, except for mere retention for potential use in judicial proceedings;

ORDERS

pursuant to arts. 58, par. 2 lett. i) and 83 of the Regulation RCS Mediagroup S.p.a., with registered office in Milan, via Angelo Rizzoli, 8 – postal code 20132, tax code 12086540155, represented by the legal representative pro tempore, to pay the sum of euro 10,000.00 (ten thousand euros) as an administrative pecuniary sanction for the violations indicated in the reasoning, representing that the offender, pursuant to art. 166, par. 8, of the Code has the option to settle the dispute by paying, within thirty days, an amount equal to half of the imposed sanction;

ORDERS

RCS Mediagroup S.p.a., in case of failure to settle the dispute pursuant to the aforementioned art. 166, par. 8, of the Code, to pay the sum of euro 10,000.00 (ten thousand euros) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of Law No. 689/1981.

DISPOSES

pursuant to art. 17 of the Garante Regulation No. 1/2019, the annotation in the internal register of the Authority pursuant to art. 57, par. 1, lett. u), of the Regulation, of the measures adopted against RCS Mediagroup S.p.a., in accordance with art. 58, par. 2, of the same Regulation.

Pursuant to art. 78 of the Regulation, as well as arts. 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be made to the ordinary judicial authority, with a petition filed, alternatively, at the court of the place where the data controller resides or has its registered office or at the court of the place of residence of the interested party within thirty days from the date of communication of this provision or within sixty days if the appellant resides abroad.

Rome, August 31, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei